AdibLaw

1 Sansome St. | Suite 3500
San Francisco | CA 94104 | USA

Tel | 888 995 9922
Fax | 415 762 5444

Web | adiblaw.com
Email | info@adiblaw.com

Hamed Adibnatanzi, Esq.
Partner
Direct 415 779 2342
Email hadib@adiblaw.com

October 17, 2019

Walnut Creek Planning Department, 2nd Floor
1666 North Main Street
Walnut Creek CA 94596

VIA HAND DELIVERY & EMAIL

Re: Pre Application Review - 1426 S Main Street, Walnut Creek CA
Adib's Persian Rug

Dear City of Walnut Creek Planning Department:

I hope you are well. I am writing regarding the proposed 2 story project at 1424-1426 S Main Street, Walnut Creek California ("Project"). The Project is currently occupied by Adib's Persian Rug ("Adibs") owned by Ray Adib. Adibs is a successful long term retailer with exclusive business operations in Walnut Creek for 45 years since 1974, and in order to continue our business success we need to expand our building and business.

We are submitting the Pre Application Review to City of Walnut Creek based on feedback during from a PRT, meetings with City of Walnut Creek Planning Department staff. We appreciate their assistance and guidance. The Project does not disturb the existing structure, proposing an expansion of the West underutilized portion of the South Main Street facing property frontage.

Enclosed please find the Pre Application Review Application, 10 copies and the $2,000 application fee.

Please contact our office at (415) 779-2342 or hadib@adiblaw.com with any questions or concerns.

Best Regards,

Hamed Adibnatanzi, Esq.

PLANNING APPLICATION

CITY OF WALNUT CREEK

Community and Economic Development Department
Planning Division
1666 North Main Street, Walnut Creek, CA 94596
(925) 256-3558 *information* (925) 256-3500 *fax*
www.walnut-creek.org *website*

Staff	*For Staff Use Only*	DRC

Work Order #: _____
Parcel Map #: _____
Total Deposit Fee: $ _____
Receipt #: _____
Received By: _____

APPLICANT: PLEASE PRINT CLEARLY AND FILL IN ALL APPLICABLE SECTIONS

TYPE OF APPLICATION (Mark all that apply):

TENTATIVE MAP

☐ MAJOR SUBDIVISION ☐ CONDO CONVERSION

☐ MINOR SUBDIVISION SUB #: _____

DESIGN REVIEW

☐ COMMERCIAL ☐ RESIDENTIAL ☐ OTHER

☐ SIGN DESIGN REVIEW ☐ ANTENNAS

☐ GENERAL PLAN AMENDMENT
☐ ZONING AMENDMENT (REZONING)
☐ CONDITIONAL USE PERMIT
☐ MINOR USE PERMIT
☐ ADMINISTRATIVE USE PERMIT
☐ VARIANCE
☐ CANNABIS OPERATOR'S PERMIT

☐ TREE REMOVAL PERMIT
☐ HOME OCCUPATION AT ZONING ADMINISTRATOR
☐ DRIP LINE ENCROACHMENT
☐ HILLSIDE PERFORMANCE STANDARDS
☒ OTHER: PRE APPLICATION REVIEW

PROJECT NAME: ADIB'S PERSIAN RUG

PROJECT SITE ADDRESS: 1426 S MAIN STREET, WALNUT CREEK CA 94596

PROJECT DESCRIPTION: RETAIL & 2ND FLOOR RESIDENTIAL ADDITION

CURRENT ZONING: _____ **CURRENT GENERAL PLAN DESIGNATION:** _____

TOTAL LOT SIZE: _____ **SQUARE FEET** _____ **ACRES** ☒ **REMODEL** ☐ **NEW CONSTRUCTION**

Is the project located on a site which is included on any of the lists specified in Government Code §65962.3 relating to hazardous waste? Please refer to www.calepa.ca.gov/sitecleanup/corteselist/sectionA.htm to determine your site's status. ☐ Yes ☐ No

APPLICANT CONTACT INFORMATION:

NAME: HAMED ADIBNATANZI
COMPANY: ADIB LAW FIRM
ADDRESS: 1 SANSOME STREET STE 3500
CITY, STATE: SAN FRANCISCO CA ZIP: 94104
PHONE #: 415.779.2342 FAX #: 415.762.5444
CELL #: 925.212.8609 EMAIL: HADIB@ADIBLAW.COM

☐ OWNER ☐ ARCHITECT
☐ ENGINEER ■ OTHER: COUNSEL

BILLING STATEMENTS WILL BE MAILED TO:

NAME: RAY ADIB
COMPANY: ADIB'S PERSIAN RUG
ADDRESS: 1426 S MAIN STREET
CITY, STATE: WALNUT CREEK CA ZIP: 94596
PHONE #: 925.937.3338 FAX #: 925.937.8253
CELL #: _____ EMAIL: RAY@ADIBS.COM

☐ OWNER ☐ ARCHITECT ■ APPLICANT
☐ ENGINEER ☐ OTHER:

PROPERTY OWNER OR AGENT AUTHORIZATION:

NAME: RAY ADIB / HAMED ADIBNATANZI
COMPANY: ADIB'S PERSIAN RUG
ADDRESS: 1426 S MAIN STREET
CITY, STATE: WALNUT CREEK CA ZIP: 94596
PHONE #: 925.937.3338 FAX #: 925.937.8253
EMAIL: RAY@ADIBS.COM

CHOOSE ONE:

☐ I am the property owner and hereby authorize the filing of this application.

■ I am the applicant and am authorized by the owner to file this application.

ORIGINAL SIGNATURE REQUIRED:

SIGNATURE: _____

DATE: 10/17/2019

STATEMENT OF UNDERSTANDING

Community and Economic Development Department
Planning Division
1666 North Main Street, Walnut Creek, CA 94596
(925) 256-3558 *information* (925) 256-3500 *fax*
www.walnut-creek.org *website*

CITY OF WALNUT CREEK

For Staff Use Only

Work Order #: _____
Project Address: _____
APN: _____

READ AND SIGN BY PERSON AUTHORIZED TO GUARANTEE PAYMENT

Hourly Rate:

I understand that charges for staff time spent processing this application will be based on the Council-approved fee schedule. See attached pages from council approved fee schedule for current hourly rates. Charges for staff time apply to the processing of all development applications and appeals, such as General Plan amendments, Zoning Ordinance amendments, use permits, subdivisions, design review, environmental review, house moving and all other development review processing.

Fees & Deposits Schedule:

The 2018-2020 Fees & Deposits schedule has been updated to include Master Fee Schedule changes approved by City Council and effective October 8, 2018. Please review the new schedule for a complete list. Within that list, please note two fees in particular:

I. Public Hearing Noticing Fee, $215 per hearing: This fee will replace charges that were previously billed at an hourly rate plus direct expenses.

II. Planning Records Fee, $35 per entitlement: This fee is similar to the records imaging fee charged for building permits and offsets costs incurred for planning permit records management.

Deposits:

Further, I understand that my **initial deposit is a retainer and not a fee.** Each application requires a deposit. The total deposit amount is the sum of the deposits for each type of application requested. The deposit amount for each application type reflects the average amount of time spent to process a standard application of that type; the deposit neither reflects the individual aspects of a project that may extend the processing time nor is the deposit amount intended as a cap. **This deposit will set up an account, which shall be charged at the current hourly rate for all staff processing time.**

Further, I understand that **at the time that costs exceed the deposit amount, I will be billed monthly at the current hourly rate for the additional charges.** If the final costs are less than the deposit amount, the unused portion of the deposit will be returned to me at the conclusion of the process or final inspection of the completed project, whichever occurs later. (The necessary staff time will vary according to the complexity of the application and the project.) I must notify the City at least 30 days in advance of any project / entitlement transfers (e.g. change in ownership, etc.) and any changes to the applicant / owner / billing contact information.

Tasks Associated with Application Processing and Review:

Further, I understand that **staff processing time may include, but is not limited to:**

I. Initial review and ongoing processing by Planning, Building, Engineering, Transportation and Public Art Divisions and the City Attorney's Office, including but not limited to:

A. Reviewing plans / submittal packages

B. Routing plans to and communicating with inter-office departments and outside agencies

C. Researching documents relative to site history

D. Site visits

E. Consulting with applicant and/or other interested parties

F. Preparing environmental documents

G. Drafting of staff reports and resolutions

H. Preparing pertinent maps, graphs and exhibits

I. Attending meetings / public hearings before the Zoning Administrator / Commissions / Council

II. Plan checking subdivision, parcel and final maps and subdivision improvement plans by Planning and Engineering Divisions subsequent to receiving discretionary approvals.

PLEASE INITIAL BOX: HA

CITY OF WALNUT CREEK

STATEMENT OF UNDERSTANDING

Community and Economic Development Department
Planning Division
1666 North Main Street, Walnut Creek, CA 94596
(925) 256-3558 *information* (925) 256-3500 *fax*
www.walnut-creek.org *website*

For Staff Use Only

Work Order #: _____
Project Address: _____
APN: _____

READ AND SIGN BY PERSON AUTHORIZED TO GUARANTEE PAYMENT

Tasks Associated with Application Processing and Review (Continued):

III. Plan checking building permits by Planning, Engineering, and Transportation Divisions and plan checking Site Development permits by Planning and Transportation Divisions, subsequent to receiving discretionary approvals;

IV. Final on-site inspections of the project by Planning, Engineering and Transportation Divisions;

V. Enforcement by Planning and Engineering Divisions of any conditions of approval imposed by the City.

I also understand that receipt of all discretionary approvals does not constitute an entitlement to begin work. Other approvals may be required from the Building and Engineering Divisions, Consolidated Fire District, Central Sanitary District, County Health Department, Water Districts and other agencies. Refer to the City Fee Schedule for other fees to be assessed prior to the issuance of project permits. These fees may include, but are not limited to:

1. Building Permit fees
2. Site Development Permit fees which may include street frontage improvements and undergrounding of utilities
3. Traffic Impact fees
4. Drainage fees
5. Parkland Dedication fees
6. Fire District, Flood Control District, Sanitary District, Water District, etc. fees
7. Filing and microfilming fees
8. Base Map Fee

Unpaid Balances and Penalties:

In addition, I understand and agree to the following:

I. Effective October 1, 2016, the City will charge interest at the rate of one percent (1%) per month on any unpaid planning application balances that are sixty (60) days or more in arrears.

II. Unpaid balances may be referred to a collections agency.

III. Failure to pay charges may halt or delay progress on the project and may result in a hold on any future permits at the property.

IV. If the City activates "locks" to halt work on projects due to unpaid balances, the City may require the payment of penalty fees and / or additional deposits in order to release "locks" and resume work.

I hereby guarantee, as authorized agent for the applicant, owner and project sponsors, that they individually and jointly assume full responsibility for all costs incurred by the City in processing this application. I understand and agree that late charges may accrue on unpaid balances, unpaid balances may be referred to a collections agency, and failure to pay all charges will result in a hold on any future permits at the property.

READ AND SIGN BY PERSON AUTHORIZED TO GUARANTEE PAYMENT

PLEASE PRINT AND COMPLETE SIGNATURE SECTIONS ON PAGES 1, 2 AND BELOW:

SIGNATURE: _____

DATE: 10/17/2019

PRINT NAME: HAMED ADIBNATANZI

☒ Applicant ☐ Owner ☐ Architect ☒ Other: COUNSEL

FEES & DEPOSITS
Introduction & Schedule
City of Walnut Creek Planning Division
Effective July 2018-2020

Hourly Rate:

Processing of all development applications and appeals, such as General Plan amendments, Zoning Ordinance amendments, use permits, subdivisions, design review, environmental review and all other development review processing is charged at an hourly rate for required staff time. Charges for staff time spent processing this application will be based on the Council-approved fee schedule, which is currently an **hourly rate of $195.**

Fees & Deposits Schedule:

The 2018-2020 Fees & Deposits schedule, attached, has been updated to include Master Fee Schedule changes approved by City Council and effective October 8, 2018. Please review the new schedule for a complete list. Within that list, please note two fees in particular:

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The initial deposit is a retainer and not a fee. Each application requires a deposit. The total deposit amount is the sum of the deposits for each type of application requested. The deposit amount for each application type reflects the average amount of time spent to process a standard application of that type; the deposit neither reflects the individual aspects of a project that may extend the processing time nor is the deposit amount intended as a cap. **This deposit will set up an account which shall be charged at the current hourly rate for all staff processing time.**

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Tasks Associated with Application Processing and Review:

Staff processing time may include, but is not limited to:

I. Initial review and ongoing processing by Planning, Building, Engineering, Transportation and Public Art Divisions and the City Attorney's Office, including but not limited to:

A. Reviewing plans / submittal packages
B. Routing plans to and communicating with inter-office departments and outside agencies
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D. Site visits
E. Consulting with applicant and/or other interested parties
F. Preparing environmental documents
G. Drafting of staff reports and resolutions
H. Preparing pertinent maps, graphs and exhibits
I. Attending meetings / public hearings before the Zoning Administrator / Commissions / Council

II. Plan checking subdivision, parcel and final maps and subdivision improvement plans by Planning and Engineering Divisions subsequent to receiving discretionary approvals;
III. Plan checking building permits by Planning, Engineering and Transportation Divisions and plan checking Site Development permits by Planning and Transportation Divisions, subsequent to receiving all discretionary approvals;

IV. Final on-site inspections of the project by Planning, Engineering and Transportation Divisions;
V. Enforcement by Planning and Engineering Divisions of any conditions of approval imposed by the City.

Receipt of all discretionary approvals does not constitute an entitlement to begin work. Other approvals may be required from the Building and Engineering Divisions, Consolidated Fire District, Central Sanitary District, County Health Department, Water Districts and other agencies. Refer to the City Fee Schedule for other fees to be assessed prior to the issuance of project permits. These fees may include, but are not limited to:

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8. Base Map Fee

Unpaid Balances and Penalties:

Unpaid balances may be referred to a collections agency. Failure to pay charges may halt or delay progress on the project and may result in a hold on any future permits at the property. If the City activates "locks" to halt work on projects due to unpaid balances, the City may require the payment of penalty fees and/or additional deposits in order to release "locks" and resume work.

Effective October 1, 2016, the City will charge interest at the rate of one percent (1%) per month on any unpaid planning application balances that are sixty (60) days or more in arrears.

FEES & DEPOSITS
Introduction & Schedule
City of Walnut Creek Planning Division
Effective July 2018-2020

Applications	Deposit	Rate
Appeals, reconsiderations, and complaints (non-applicants only)	-	$205 (flat)
Public Hearing Noticing Fee	-	$215 per hearing
Public Hearing Publication Fee	-	Actual Cost
Environmental Review		
Environmental Assessment	$1,200	$195/hr
Probable Negative Declaration	$2,500	$195/hr
Environmental Impact Report	$5,000	$195/hr
Design Review		
Single Family Homes - Staff Design Review	$2,500	$195/hr
Single Family Homes - Design Review Commission	$5,000	$195/hr
New Buildings/Projects	$10,000	$195/hr
Small Additions/Remodel & Storefronts	$1,200	$195/hr
Awning & Canopy Permit	-	$195 (flat)
Sign Review		
Freestanding Signs, Sign Programs & Exceptions	$1,200	$195/hr
Signs requiring staff approval only	-	$390 (flat fee) plus $30 per additional sign
Signs Subcommittee Review	$390	$195/hr
Sign Face Change Only	-	$97.50 (flat)
Sign Retrieval Fee	-	$97.50 (flat)
Signs installed without permit penalty	-	Actual Cost up to $700
Blade Sign	-	$195 (flat)
Pre-Application Review	$2,000	$195/hr
Zoning Amendment, Rezoning	$4,000	$195/hr
General Plan Amendment	$4,000	$195/hr
Subdivisions		
Tentative map (4 or fewer parcels)	$4,000	$195/hr
Tentative map (5 or more parcels)	$10,000	$195/hr
Minor Use Permit/Fence	$1,200	$195/hr
Use Permit	$2,500	$195/hr
Administrative Use Permit	$800	$195/hr

FEES & DEPOSITS
Introduction & Schedule
City of Walnut Creek Planning Division
Effective July 2018-2020

Banner Permit	-	$97.50 (flat)
Grand Opening Permit	-	No Charge
Short Term Promotional / Temporary Activity Permit	-	$195(flat)
Variance	$2,500	$195/hr
Large Family Daycare Permit	$2,000	$195/hr
Annexation Requests	$2,000	$195/hr
Street Name & Number Change Requests	$1,200	$195/hr
Home Occupation Permit (Staff Review Only)	-	$97.50 (flat)
Home Occupation Permit (Zoning Administrator Review)	$1,200	$195/hr
Sidewalk Dining Encroachment Permit	-	$200 per year
Wireless Antenna Requests (Design Review/Use Permit)	$5,000	$195/hr
Preliminary Review Team (PRT)		
Multi-Unit / -Family & Commercial, 1st Visit		$195 (flat)
Multifamily & Commercial, 2nd Visit (Pre-App)	$1,200	$195/hr
Single Family Dwelling, 1st Visit	-	No Charge
Single Family, 2nd Visit	-	$97.50 (flat)
General Records Research (per hour plus actual cost of docs)	No charge 1st 15 minutes	$195/hr
Specific Records Research (per hour plus actual cost of docs)	-	$195/hr
Building Permit Planning Division Review	-	$195/hr w/W.O. or 15% of building plan check fee
Certificate of Zoning Status or Zoning Interpretation	$390	$195/hr, 2-hr minimum
Planning Records Fee (Per entitlement, i.e. GPA, RZ, CUP)	-	$35 per entitlement
Off-street Private Parking Lot Certification	-	$150 per lot
Private Lot Enforcement Certification	-	$295 (flat)
Subordination Agreement	-	$280 (flat)
First-Time Down Payment Assistance Loan	-	$280 (flat)

Commercial Cannabis Application Fee	-	$4,600 (flat)
Commercial Cannabis Operator's Permit Annual Renewal Fee	-	$10,500 (flat)
Commercial Cannabis Background Investigation Fee	-	$275.00 (flat)



1 PERSPECTIVE VIEW



2 VINCITY MAP

1426 S. MAIN ST

RETAIL & RESIDENTIAL ADDITION

SHEET INDEX

G0 COVER SHEET, PERSPECTIVE VIEW AND VICINITY MAP
G1 SURVEY
A1 SITE PLAN
A2 ELEVATION AND RESIDENTIAL FLOOR PLAN
A3 CONCEPTUAL COLOR & MATERIAL BOARD

LCA ARCHITECTS

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CARL E. CAMPOS
DAVID BOGSTAD
PETER STACKPOLE

590 YGNACIO VALLEY ROAD, SUITE 310
WALNUT CREEK, CALIFORNIA 94596
(925) 944-1626

1970 BROADWAY, SUITE 800
OAKLAND, CALIFORNIA 94612
(510) 272-1060

1426 S. MAIN ST
RETAIL & RESIDENTIAL ADDITION

LCA ARCHITECTS
RESTRICTED ARCHITECTURAL DRAWINGS

THE INFORMATION, PLANS, DESIGNS, NOTES AND ARRANGEMENTS SHOWN ON THIS DRAWING ARE CONFIDENTIAL AND MAY NOT BE REPRODUCED IN WHOLE OR IN PART WITHOUT THE EXPRESSED WRITTEN PERMISSION OF LCA ARCHITECTS. DRAWINGS NOTED AS PRELIMINARY, SCHEMATIC AND / OR CONCEPT CONTAIN INFORMATION THAT IS CONCEPTUAL AND SUBJECT TO VERIFICATION AND/OR CHANGE. THE ARCHITECT MAKES NO CLAIM FOR ACCURACY OF CONCEPTUAL INFORMATION OR OF INFORMATION SUPPLIED BY OTHERS.

COVER SHEET
PERSPECTIVE VIEW
VICINITY MAP

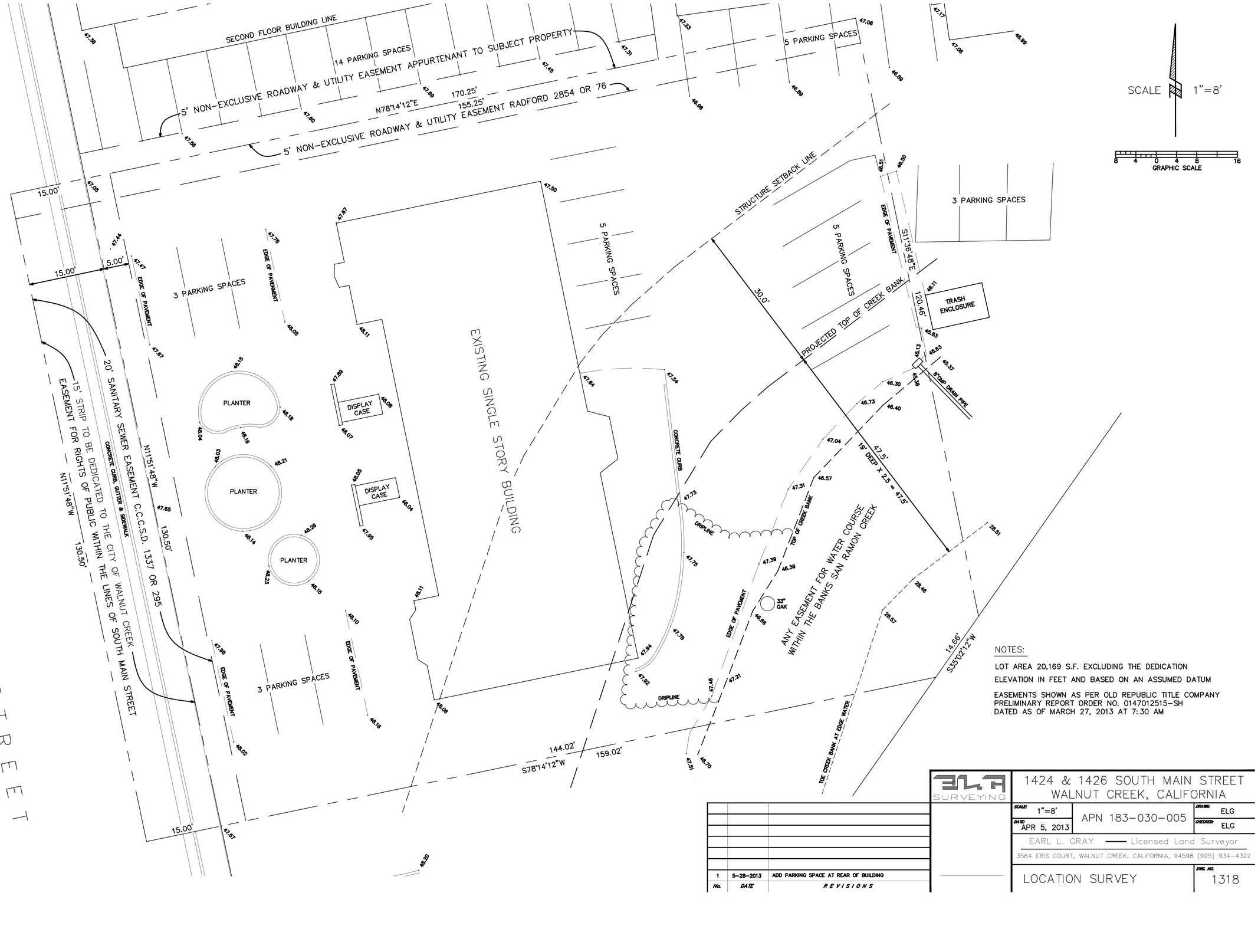
SCALE:
DATE: 10 / 08 / 19

REVISIONS:

PROJECT NO. 13034

G0

SHEET OF



NOTES:

LOT AREA 20,169 S.F. EXCLUDING THE DEDICATION

ELEVATION IN FEET AND BASED ON AN ASSUMED DATUM

EASEMENTS SHOWN AS PER OLD REPUBLIC TITLE COMPANY PRELIMINARY REPORT ORDER NO. 0147012515-SH DATED AS OF MARCH 27, 2013 AT 7:30 AM

No.	DATE	REVISIONS
1	5-28-2013	ADD PARKING SPACE AT REAR OF BUILDING

ELG SURVEYING

1424 & 1426 SOUTH MAIN STREET
WALNUT CREEK, CALIFORNIA

SCALE: 1"=8' | APN 183-030-005 | DRAWN: ELG
DATE: APR 5, 2013 | CHECKED: ELG

EARL L. GRAY — Licensed Land Surveyor
3564 ERIS COURT, WALNUT CREEK, CALIFORNIA, 94598 (925) 934-4322

LOCATION SURVEY | DWG. NO. 1318

LCA ARCHITECTS

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CARL E. CAMPOS
DAVID BOGSTAD
PETER STACKPOLE

590 YGNACIO VALLEY ROAD, SUITE 310
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(925) 944-1626

1970 BROADWAY, SUITE 800
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1426 S. MAIN ST

RETAIL & RESIDENTIAL ADDITION

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SURVEY

SCALE: AS NOTED
DATE: 10 / 08 / 19

REVISIONS:

PROJECT NO. 13034

G1

SHEET OF

1426 S. MAIN ST

RETAIL & RESIDENTIAL ADDITION

RETAIL ADDITION + 3 STUDIO LOFT APARTMENTS + 2 ONE-BEDROOM LOFT APARTMENTS

PROJECT DATA:

ADDRESS
1426 S MAIN ST
WALNUT CREEK, CA 94596

APN
183-030-005

LOT SIZE
22,134 SF

BUILDING SIZE

EXISTING BUILDING:	3727 SF
PROPOSED ADDITION:	3216 SF
TOTAL:	6943 SF

LOT COVERAGE

EXISTING:	3727 / 22134 = 17%
PROPOSED:	6943 / 22134 = 31%

SETBACK CALCULATIONS:

REQUIRED:
25' AVG. SETBACK
25'x96' = 2400 SF REQUIRED

PROVIDED:
5' x 56' = 280 SF
20' x 47' = 940 SF
TOTAL: 1180 SF

PARKING REQUIRED
1 SPACE/250 SF OF RETAIL:

EXISTING: 3727 SF

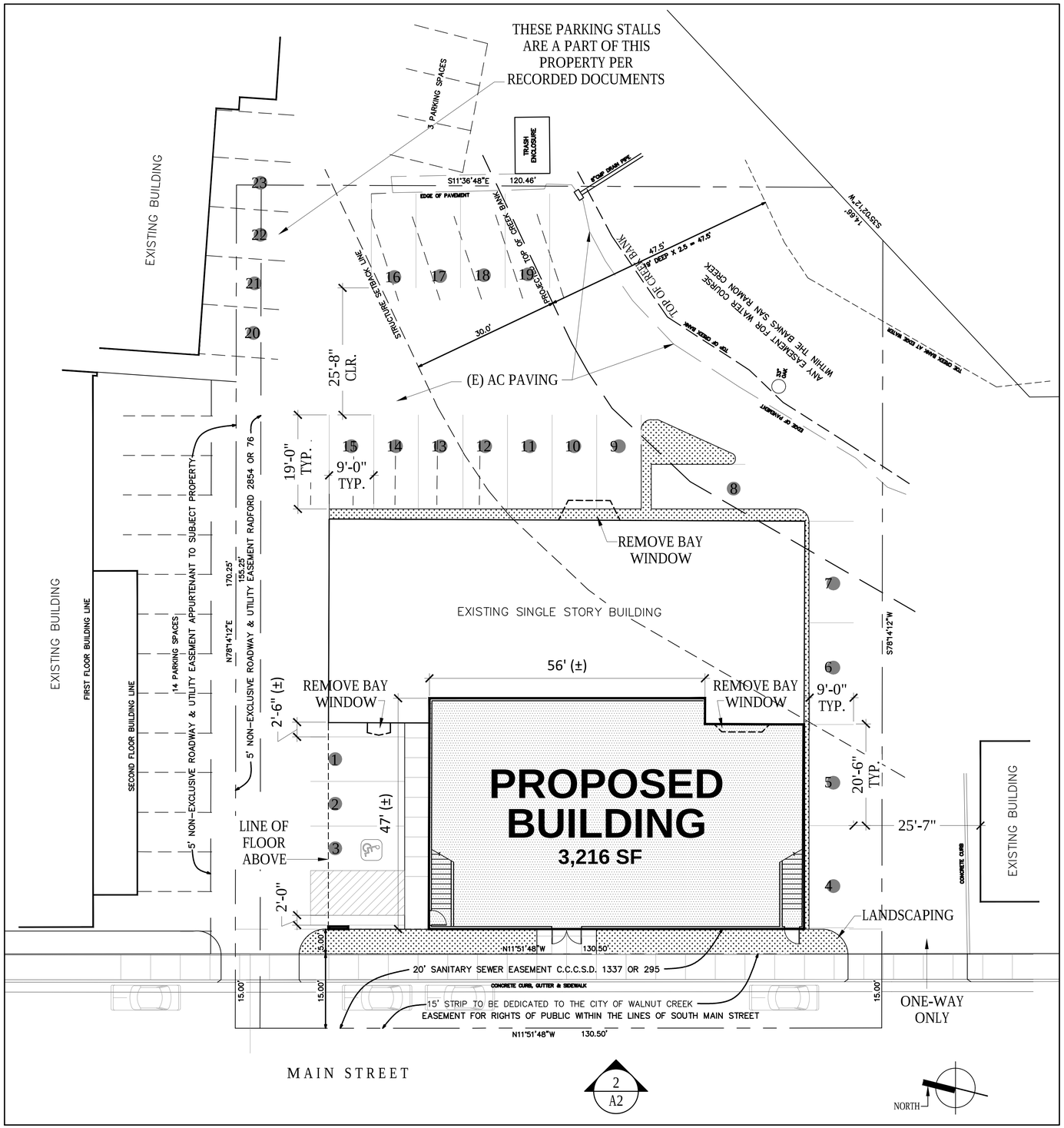
PROPOSED: 3216 SF (ADDITION) + 3727 SF = 6943 SF

PARKING REQUIRED: 28 STALLS

3 STUDIO APARTMENTS x 1.25 STALLS = 3.75
2 ONE-BEDROOM x 1.5 STALLS = 3

TOTAL STALLS REQUIRED: 35

TOTAL STALLS PROVIDED: 23



1 SITE PLAN

SCALE: 3/32" = 1'-0"

10'-8" 0' 10'-8" 21'-4"
SCALE: 3/32" = 1'-0"

LCA ARCHITECTS

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CARL E. CAMPOS
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1426 S. MAIN ST
RETAIL & RESIDENTIAL ADDITION

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SITE PLAN

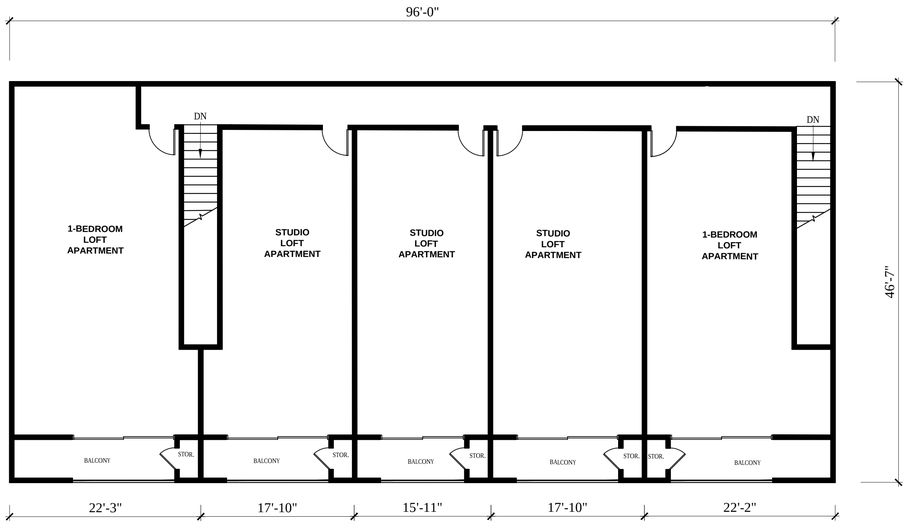
SCALE: AS NOTED
DATE: 10 / 08 / 19

REVISIONS:

PROJECT NO. 13034

A1

SHEET OF



1 2nd STORY APARTMENT PLAN

SCALE: 1/8" = 1'-0"



2 ELEVATION

SCALE: 1/8" = 1'-0"

8' 0' 8' 16'

SCALE: 1/8" = 1'-0"

LCA ARCHITECTS

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1426 S. MAIN ST

RETAIL & RESIDENTIAL ADDITION

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2ND LEVEL PLAN
ELEVATION

SCALE: AS NOTED
DATE: 10 / 08 / 19

REVISIONS:

PROJECT NO. 13034

A2

SHEET OF

KELLY MOORE
FASCIA
"ALUMINUM
SKY"
KM5820

KELLY MOORE
WINDOW &
DOOR FRAMES
"CARBON"
407

KELLY MOORE
BODY
"ANTIQUE
WHITE"
KM49



STAND ALONE
METAL LETTERS



EXTERIOR
WALL SCONCE



METAL GUARD
RAILING



CANOPY
ATTACHMENT

EQUIPMENT SCREEN

35’ HEIGHT LIMIT

ADIBS PERSIAN RUG CO.

1 FRONT ELEVATION

LCA ARCHITECTS

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CARL E. CAMPOS
DAVID BOGSTAD
PETER STACKPOLE

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